

25STCP01069 25STCP01069

County: los-angeles

Division: Civil Law and Motion

Department: 834

Hearing date: 2026-07-07

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Case Number: 25STCP01069 Hearing Date: July 7, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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OLIVET UNIVERSITY,

Petitioner,

vs.

BUREAU

FOR PRIVATE POST-SECONDARY EDUCATION,

Respondent.

Case No.:

25STCP01069

Hearing Date:

July 7, 2026

TENTATIVE ORDER RE:

OSC RE JUDGMENT

Having reviewed the prior judge's tentative ruling dated April 23, 2026; the minute order from the same date; the certified copy of the transcript of the April 23, 2026 hearing attached to the Declaration of Dionne Mochon, filed June 1, 2026; and the parties' competing proposed judgments, writs, and objections, the Court issues the following tentative ruling.

The record reflects that Judge Chalfant's operative ruling was controlled by his oral pronouncement and the April 23, 2026 minute order. In both the transcript and the minute order, the Court expressly stated that the matter was remanded to the Bureau, not to the Administrative Law Judge. Although Judge Chalfant, in discussing the practical mechanics of remand, observed that he "assumed" the Bureau would in turn remand to the ALJ, he did not order such a remand, nor did he direct the ALJ to issue a new proposed decision. The remand actually made, and thus the legally operative order, was to the Bureau alone, for the Bureau's evaluation of the remediation evidence in the existing administrative record and for placement of that evidence in context with the relevant disciplinary factors.

The Court therefore agrees with Respondent that Petitioner's proposed judgment and proposed writ do not accurately reflect Judge Chalfant's order. Petitioner's proposed documents improperly direct a remand to the ALJ and impose obligations on the ALJ that this Court did not order. They also include language suggesting judgment solely in favor of Petitioner and entitlement to costs, neither of which is supported by the transcript or minute order.

The Court is inclined to adopt Respondent's proposed judgment and proposed peremptory writ of mandate, which more faithfully track the actual rulings reflected in the transcript and minute order. Respondent's versions correctly (1) reflect that the petition was granted in part and denied in part, (2) incorporate only those portions of the tentative ruling that the Court adopted, and (3) remand the matter to the Bureau for the limited purpose previously ordered.

However, before entry, the Court directs Respondent to re-file its proposed judgment and proposed peremptory writ with Exhibits A and B attached in final form. Upon receipt of the corrected submissions, the Court anticipates signing them.

Date: July 7, 2026

HON. TIANA J. MURILLO